

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARIA MUY HIDALGO,

Petitioner

VS.

TEMAR HUNT,

Respondent

) Case Number: FPT-25-378543

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Maria Muy Hidalgo (Mother) and Respondent Temar Hunt (Father) have two minor children, Avionna (DOB: 7/30/2012) and Theo (DOB: 4/14/2015). Father and the children live in San Francisco; Mother lives in Nevada.
- 2) In an order after trial filed 10/25/2022, the San Joaquin County Superior Court ordered that the parties shall share legal custody of the children and that Father shall have physical custody of the children, with Mother to have parenting time during the holidays and as follows: "Upon 21 days' notice by AppClose Mother may have one weekend a month in California from Sat[urday] at 10am until Sunday at 5pm in any month she does not have a visit as set forth in the holiday schedule." The order provides: "This is a final custody order requiring a change in circumstances to modify."

1 3) On 9/26/2024, the parties stipulated to have venue transferred to San Francisco County. See San
2 Joaquin Superior Court order filed 11/25/2024.

3 4) On 12/10/2025, Mother filed a request for the children to move to Nevada to live with her.
4 Mother noted she made a report to Child Protective Services (CPS) that one of the children was
5 sexually abused while in the paternal grandmother's care. CPS determined there was no sexual
6 abuse and that Mother had coached the child; Mother denied coaching the children. Mother
7 requested a Tier II interview of Avionna for the child to express which parent she would like to
8 live with. Father denied Mother's allegations in his response filed 12/31/2025.

9 5) On 12/31/2025, Father filed an ex parte request asking that Avionna be immediately returned to
10 his care after Mother kept Avionna beyond her custodial time based on Mother's representation
11 that Avionna was refusing to return to Father's care. This Court denied the ex parte request
12 pending a custody and visitation hearing on 3/10/2026.

13 6) After the 3/10/2026 hearing, the Court issued the following orders in the Findings and Order
14 After Hearing filed on 4/3/2026:

- 15 a. The Court finds it is in the children's best interests to maintain the 10/25/2022 final
16 custody orders from San Joaquin County Superior Court for joint legal custody and
17 physical custody to Father, with parenting time as set forth in that order.
- 18 b. Mother's request that the children move to Nevada to live with her is DENIED.
- 19 c. Mother's request for a Tier II interview of Avionna is denied at this time; however, a
20 review hearing is set for 6/23/2026 at 9am in Department 404 to see how parenting time
21 with both parents is going, and to evaluate whether a Tier II interview of either child is
22 appropriate. Both parties shall file and serve update declarations no later than 6/15/2026.

23 7) On 6/15/2026, Mother filed an Update Declaration stating the current custody arrangement is not
24 in the children's best interests because it inadequately supports the children's emotional needs,
25 academic progress, or stability. Mother states Father is uncooperative in both co-parenting and
26 communicating with her. According to Mother, during late May, she observed scars and markings
27 on Avionna's wrists, suggesting signs of self-harm. Mother raised this issue and an additional
28 concern about the children's decline in academic performance. Mother states Father was
29 unresponsive to her attempts to remedy the children's situation, and that Father has delayed

1 setting up therapy for the children. Mother also states Father failed to disclose information about
2 the children's medical appointment, and this lack of communication is harming the parties' ability
3 to conduct meaningful co-parenting.

4 8) Father did not file a Responsive Declaration.

5 **B. Findings and Order**

6 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
7 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
8 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
9 children is the United States.

10 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/23/2026 in**
11 **Department 404.**